

and a scheme under this section, when so confirmed, shall have effect as if enacted in this Measure.

4. Nothing in this Measure or in any scheme there-
under shall prejudice or affect any right, interest or
jurisdiction in or over any charitable endowment.

Saving as to
charitable
endow-
ments.

5. This Measure may be cited as the “Wythenshawe
Parishes (Transfer) Measure, 1933.”

Short title.

No. 3.

A MEASURE passed by the National Assembly of the Church of England.

To allocate the Revenues of the Dean and Canons
of the Cathedral or Collegiate and Parish
Church of Manchester and for purposes connected
therewith. [28th July 1933.]

1.—(1) As from the passing of this Measure, the
Warden and Fellows of the College of Christ in
Manchester, commonly called the Dean and Canons
of Manchester (hereinafter called “the Chapter”), shall
make provision in manner laid down by this Measure
for the repair and maintenance of the entire fabric
of the Cathedral or Collegiate and Parish Church of
Manchester (hereinafter called “Manchester Cathedral”)
and of all buildings which are situate or may hereafter
be erected within the existing limits of the cathedral
churchyard.

Chapter to
provide for
repair of
the whole
cathedral.

(2) The fabric of Manchester Cathedral and the
said buildings are hereinafter referred to collectively
as “the cathedral fabric.”

2.—(1) The annual revenues of the Chapter shall,
subject to provision being made thereout for the cost
of management, estate repairs, and other estate out-
goings, but not for income tax, be allocated in manner
following, that is to say :—

Allocation
of Chapter
revenues.

- (i) the annual sum of fifty-five thousand pounds
shall be paid by the Chapter to the Ecclesiastical
Commissioners;

(ii) the annual sum of nine thousand pounds shall be retained by the Chapter;

(iii) subject to the payment and retention of the said annual sums, the sum of six thousand pounds or such less sum as may be available shall in each year be divided into two equal parts, of which—

(a) one part shall be paid by the Chapter to the Ecclesiastical Commissioners; and

(b) the other part shall be retained by the Chapter.

13 & 14 Viet.
c. 41.

(2) In this Measure the expression “annual revenues of the Chapter” means revenues derived from the capitular property in respect of which the Chapter is accountable to the Ecclesiastical Commissioners under the Parish of Manchester Division Act, 1850 (hereinafter called “the Act of 1850”), but does not include any revenues in respect of which the Chapter has not hitherto been so accountable or which are applicable for specified purposes under any trust or scheme now in force.

Disposal
of surplus
revenues.

3.—(1) Subject to the provisions of this section, the Ecclesiastical Commissioners shall have power from time to time to frame and submit to His Majesty in Council for confirmation a scheme for the allocation of any surplus of the annual revenues of the Chapter, remaining in any year after the sum of six thousand pounds mentioned in the last preceding section has been allocated in full, either to the Ecclesiastical Commissioners or to the Chapter, or partly to one and partly to the other of these bodies, by way of addition to the annual sums allocated to them respectively under the same section; and a scheme under this section when so confirmed shall have effect as if enacted in this Measure.

(2) No scheme under this section shall be submitted to His Majesty in Council for confirmation except with the consent of—

(i) the Bishop of Manchester,

(ii) the Chapter,

- (iii) the Cathedral Commissioners for England (except in the case of a scheme submitted after the cesser of their powers), and
- (iv) a majority of the incumbents (hereinafter called the "Manchester incumbents") to whom payments may be made by the Ecclesiastical Commissioners under the Act of 1850 present and voting at a meeting convened and presided over by the Bishop of Manchester, who shall have power conclusively to determine any question which may arise as to the procedure of such meeting.

(3) Any moneys derived from a surplus available for division under a scheme under this section, which has not been so divided within twelve calendar months after the end of the financial year in which such surplus has arisen, shall until a scheme disposing of such surplus shall have been confirmed under this section be paid to the Ecclesiastical Commissioners and applied by them in such manner as the Bishop of Manchester may approve either for the benefit of Manchester Cathedral or, as to the whole of any such moneys or any part thereof, for the benefit of the Manchester incumbents or any of them and for making better provision for the cure of souls in the parish of Manchester.

4. If in any year the annual revenues of the Chapter shall be insufficient to provide the annual sums of fifty-five thousand pounds and nine thousand pounds respectively mentioned in section two of this Measure, the said annual sum shall be proportionately reduced.

Provision
for
deficiency
in annual
revenues.

5. The several sums payable to the Ecclesiastical Commissioners under section two of this Measure together with any addition thereto arising under any scheme under this Measure shall be applied as if the same had been respectively paid to the Ecclesiastical Commissioners under the Act of 1850.

Application
of income
received by
Ecclesiastical
Commissioners.

6. Notwithstanding anything contained in the Act of 1850 or any enactment varying or amending that Act, the several sums retained by the Chapter under section two of this Measure together with any addition thereto arising under any scheme under this Measure (hereinafter called "the cathedral income") shall respectively be applied until such time as a scheme under

Application
of cathedral
income.

the Cathedrals Measure, 1931, providing for the allocation of the cathedral income, shall have been confirmed by His Majesty in Council, in manner following (that is to say) :—

- (i) as to such part thereof as the Chapter, with the approval of the Bishop of Manchester, may deem necessary in and for the repair and maintenance of the cathedral fabric; and
- (ii) as to the residue thereof for the general purposes of Manchester Cathedral (including the stipends of the Dean, the Canons and the other ministers and officers of Manchester Cathedral, but not the repair and maintenance of the cathedral fabric) in the same manner as if the same were being applied for those purposes under the Act of 1850 and the enactments varying or amending that Act.

Short title.

7. This Measure may be cited as the Parish of Manchester Revenues Measure, 1933.

No. 4.

A MEASURE passed by the National Assembly
of the Church of England.

To make further provision with regard to the administration of the property of vacant benefices and to confer certain powers upon sequestrators appointed under the Benefices (Ecclesiastical Duties) Measure, 1926.

[17th November 1933.]

Remuneration of occasional ecclesiastical duties performed in vacant benefices.

1.—(1) The bishop of every diocese shall in addition to the power conferred on him by section fourteen of the Benefices (Ecclesiastical Duties) Measure, 1926, of determining the amount of the stipend to be assigned to curates officiating in vacant benefices in his diocese have power also to determine the amount of the remuneration to be paid to clerks in Holy Orders who perform occasional ecclesiastical duties in such benefices.